

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C. 20436

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREOF**

Investigation No. 337-TA-563

2006 JUN 21 AM 9:07

**NOTICE OF COMMISSION DETERMINATION NOT TO REVIEW AN
INITIAL DETERMINATION FINDING A RESPONDENT IN DEFAULT**

AGENCY: U.S. International Trade Commission.

ACTION: Notice.

SUMMARY: Notice is hereby given that the U.S. International Trade Commission has determined not to review an initial determination ("ID") (Order No. 5) of the presiding administrative law judge ("ALJ") in the above-captioned investigation finding respondent Sinochem Ningbo, Ltd. in default.

FOR FURTHER INFORMATION CONTACT: Timothy P. Monaghan, Esq., Office of the General Counsel, U.S. International Trade Commission, 500 E Street, S.W., Washington, D.C. 20436, telephone 202-205-3152. Copies of the nonconfidential ID and all other nonconfidential documents filed in connection with this investigation are or will be available for inspection during official business hours (8:45 a.m. to 5:15 p.m.) in the Office of the Secretary, U.S. International Trade Commission, 500 E Street, S.W., Washington, D.C. 20436, telephone 202-205-2000. Hearing-impaired persons are advised that information on this matter can be obtained by contacting the Commission's TDD terminal on 202-205-1810. General information concerning the Commission may also be obtained by accessing its Internet server (<http://www.usitc.gov>). The public record for this investigation may be viewed on the Commission's electronic docket (EDIS) at <http://edis.usitc.gov>.

SUPPLEMENTARY INFORMATION: The Commission instituted this investigation, which concerns allegations of unfair acts in violation of section 337 in the importation and sale of certain portable power stations and packaging thereof on March 14, 2006, based on a complaint filed by Roadmaster (USA) Corporation, of Eatontown, New Jersey ("Roadmaster"). 71 Fed.

Reg. 13166 (March 14, 2006). The respondent named in the notice of investigation is Sinochem Ningbo, Ltd., of Ningbo, China ("Sinochem"). Roadmaster's complaint alleged that respondent's products infringe U.S. Design Patent No. D469,739; U.S. Trademark Registration No. 2,594,538; and Copyright Registration No. VA-1-261-495.

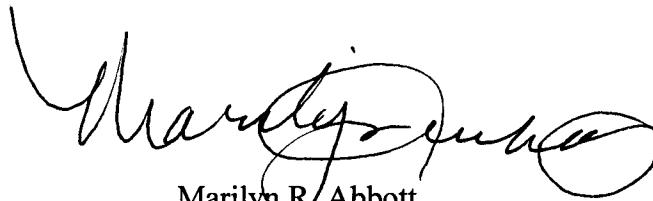
On May 9, 2006, complainant Roadmaster moved for an order directing respondent Sinochem to show cause why it should not be found in default for failing to respond to the complaint and notice of investigation. Roadmaster further requested issuance of an initial determination finding Sinochem in default in failure to show cause. In addition, Roadmaster's motion included a request for immediate entry of relief upon finding of default by Sinochem. The Commission investigative attorney filed a response in support of Roadmaster's motion, and took no position with respect to Roadmaster's request for immediate entry of relief.

On July 12, 2006, the presiding ALJ issued an ID (Order No. 5) granting the motion of Roadmaster finding Sinochem in default pursuant to Commission rule 210.16.

No party filed a petition for review of the subject ID.

The authority for the Commission's determination is contained in section 337 of the Tariff Act of 1930, as amended (19 U.S.C. § 1337), and in section 210.42 of the Commission's Rules of Practice and Procedure (19 C.F.R. § 210.42).

By order of the Commission.

A handwritten signature in black ink, appearing to read "Marilyn R. Abbott", with a large, stylized flourish at the end.

Marilyn R. Abbott
Secretary to the Commission

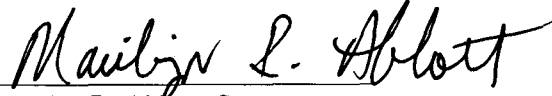
Issued: *July 20, 2006*

**CERTAIN PORTABLE POWER STATIONS AND PACKAGING
THEREFOR**

337-TA-563

CERTIFICATE OF SERVICE

I Marilyn R. Abbott, hereby certify that the attached **NOTICE OF COMMISSION DETERMINATION NOT TO REVIEW AND INITIAL DETERMINATION FINDING A RESPONDENT IN DEFAULT** has been served on upon the Commission Investigative, David O. Lloyd, Esq., and all parties via first class mail and air mail where necessary on July 21, 2006.



Marilyn R. Abbott, Secretary
U.S. International Trade Commission
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Washington, DC 20436

ON BEHALF OF COMPLAINANT
ROADMASTER (USA) CORPORATION:

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